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DEFENDANT JOEL MOSQUERA'S MOTION TO COMPEL PLAINTIFF'S
FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO, AND FOR
MONETARY SANCTIONS

Motion filed on June 2, 2026.

MOVING PARTY: Defendant Joel Mosquera

RESPONDING PARTY: Plaintiff Deivi Ramirez Aguila

NOTICE: OK.

RELIEF REQUESTED: Defendant seeks further responses and
production to RFP Set Two, Nos. 1 through 15, and \$167.45 in sanctions. As
narrowed, the only further discovery relief sought is production of Schedule A
and Schedule E pages under RFP No. 5, or alternatively in camera review.

RULING: Denied. Sanctions denied.

BACKGROUND

Plaintiff Deivi Ramirez Aguila (Plaintiff) filed the

Complaint against Defendant Joel Mosquera (Defendant) on April 14, 2025, alleging one cause of action for partition of real property by sale.

On June 2, 2026, Defendant filed the instant Motion to Compel Further Responses to Requests for Production, Set Two. On June 12, 2026, Plaintiff filed an Opposition. On June 15, 2026, Defendant filed a Reply.

On June 30, 2026, the Court continued the motion, ordered the parties to meet and confer directly, and ordered the parties to file a joint statement identifying each request still in dispute.

On September 1, 2026, Plaintiff and Defendant each filed a Statement of Remaining Issues concerning the continued motion.

LEGAL STANDARD

A motion to compel further responses to inspection demands must set forth specific facts showing good cause justifying the discovery sought. (Code Civ. Proc., § 2031.310, subd. (b)(1).) To establish good cause, the moving party must identify a disputed fact of consequence and explain how the discovery sought will tend to prove or disprove that fact or lead to other evidence that will do so. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224, overruled on another ground in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557, fn. 8.) The burden is not onerous and may be satisfied by a fact-specific showing of relevance. (*TBG Ins. Services Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) Once good cause is shown, Plaintiff bears the burden of justifying each objection or failure to provide a complete response. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220.)

A response must state that the responding party will comply, lacks the ability to comply, or objects to the demand. (Code Civ. Proc., § 2031.210, subd. (a).) A representation of inability to comply must affirm that a diligent search and reasonable inquiry were made and explain why the responding party cannot comply. (Code Civ. Proc., § 2031.230.) Where documents are withheld based on privilege or work product, the response must provide sufficient factual information to permit evaluation of the claim, including a privilege log if necessary. (Code Civ. Proc., § 2031.240, subd. (c)(1).)

DISCUSSION

Scope of Remaining Disputes

The parties met and conferred by telephone on August 14, 2026. Plaintiff served supplemental verified responses to RFP Nos. 1 through 15 and a 150-page Bates-stamped production on August 25, 2026. Defendant states that on August 26, 2026, he identified three remaining subjects and, on August 30, 2026, identified three additional production-completeness matters. (Def.'s Sept. 1 Stmt. at p. 2.)

As to RFP Nos. 1, 2, 4, and 6 through 14, Plaintiff states that Defendant's August 26 email identified only three remaining subjects and that Plaintiff therefore understood "the other deficiencies raised in Defendant's motion have been resolved." Plaintiff requests that the motion be found moot as to all requests other than RFP Nos. 3, 5, and 15. (Plf.'s Sept. 1 Stmt. at p. 10.) Defendant's requested relief seeks no further response or production as to RFP Nos. 1, 2, 4, and 6 through 14. (Def.'s Sept. 1 Stmt. at p. 6.) No further relief is ordered as to those requests.

As to RFP No. 3, Defendant states that he "does not seek an order compelling further production on RFP No. 3." (Def.'s Sept. 1 Stmt. at p. 3.) Plaintiff likewise contends that his supplemental response satisfies section 2031.230 and that "no further response or production can be compelled." (Plf.'s Sept. 1 Stmt. at p. 5.) No further relief is ordered as to RFP No. 3.

As to RFP No. 15, Defendant agrees that the request "does not independently demand Schedule A or Schedule E" and states that he "does not pursue it as a standalone issue." (Def.'s Sept. 1 Stmt. at p. 3.) Plaintiff likewise contends that RFP No. 15 does not separately require production of tax schedules and that any dispute concerning Schedule A or Schedule E should be addressed under RFP No. 5. (Plf.'s Sept. 1 Stmt. at p. 9.) No further relief is ordered as to RFP No. 15.

As to RFP No. 5, Defendant states that he has narrowed the request to Schedule A and Schedule E pages concerning the Plummer Property for tax years 2021 through 2025 and seeks their production or, alternatively, in camera review. (Def.'s Sept. 1 Stmt. at p. 4.) Plaintiff maintains the tax-return privilege applies, and requests that the motion be denied as to RFP No. 5. (Plf.'s Sept. 1 Stmt. at pp. 6-7.)

Defendant also identifies three additional matters concerning a closet repair, water-heater relocation, and bank-statement transactions. Defendant expressly states that “[n]o relief is requested on these items at the September 9, 2026 hearing,” but asks the Court to note his “reservation and preclusion notice” concerning those matters. (Def.’s Sept. 1 Stmt. at pp. 4-6.) The June 30 order required the parties to identify the requests remaining in dispute for resolution at the continued hearing. It did not provide for reservation of additional disputes for later motion practice. The Court therefore declines to “note” Defendant’s asserted reservation.

Accordingly, the only remaining discovery issue for resolution is RFP No. 5.

Request for Production No. 5

Defendant’s RFP No. 5 seeks: “[Plaintiff’s] complete federal and state income tax returns for tax years 2021 through 2025, including all schedules, attachments, and amended returns, specifically any Schedule E, Schedule A, or other schedule on which [Plaintiff] claimed ownership interest, mortgage interest deductions, rental income, or depreciation related to the Plummer Property.” (Plf.’s Sept. 1 Stmt. at p. 6.)

On August 25, 2026, Plaintiff served supplemental verified responses to RFP Set Two. (Plf.’s Sept. 1 Stmt. at p. 3.) Plaintiff’s operative supplemental response to RFP No. 5 asserts tax-return privilege and privacy objections. Plaintiff identifies the withheld materials as his 2022 through 2024 federal and state income-tax returns, including Schedule A, Schedule E, depreciation schedules, attachments, and amended returns, if any, and his 2025 returns and schedules to the extent completed or maintained. Plaintiff further states that non-tax source documents concerning the Plummer Property were produced and that, except for the identified tax-return materials, he is not withholding responsive nonprivileged documents. (Plf.’s Sept. 1 Stmt. at p. 6.)

Following the Court-ordered meet and confer, Defendant’s position is that he has “narrowed RFP No. 5 to the Schedule A and Schedule E pages relating to the Plummer Property for tax years 2021 through 2025.” Defendant contends that Plaintiff’s supplemental response to Special Interrogatory No. 37 placed the substance of the returns at issue and seeks production of those schedules or, alternatively, in camera review. (Def.’s Sept. 1 Stmt. at p. 4.)

Plaintiff's position is that the tax-return privilege applies and was not intentionally relinquished. Plaintiff contends that the issues in this action can be addressed through the non-tax records already produced and requests that the motion be denied as to RFP No. 5. (Plf.'s Sept. 1 Stmt. at p. 7.)

Under California law, tax returns are privileged. (See *Webb v. Standard Oil Co. of Cal.* (1957) 49 Cal.2d 509, 513 ["The purpose of the amended statutory provisions prohibiting disclosure is to facilitate tax enforcement by encouraging a taxpayer to make full and truthful declarations in his return, without fear that his statements will be revealed or used against him for other purposes. If the information can be secured by forcing the taxpayer to produce a copy of his return, the primary legislative purpose of the secrecy provisions will be defeated. The effect of the statutory prohibition is to render the returns privileged, and the privilege should not be nullified by permitting third parties to obtain the information by adopting the indirect procedure of demanding copies of the tax returns."]; *Schnabel v. Superior Court* (1993) 5 Cal.4th 704, 720 ["This privilege against forced disclosure of tax returns has been reaffirmed in a variety of situations by both this court and the courts of appeal."].)

Here, the Court finds that Plaintiff has justified his tax-return privilege objection. As narrowed, RFP No. 5 seeks Schedule A and Schedule E pages from Plaintiff's federal and state income-tax returns. The requested schedules are portions of Plaintiff's federal and state income-tax returns and therefore fall within the tax-return privilege. (*Webb*, *supra*, 49 Cal.2d at pp. 513-514.)

The privilege, however, is not absolute. It is waived or does not apply where there is an intentional relinquishment, where the gravamen of the action is so inconsistent with continued assertion of the privilege as to compel the conclusion that the privilege has been waived, or where a public policy greater than the confidentiality of tax returns is involved. (*Schnabel*, *supra*, 5 Cal.4th at p. 721.)

The record does not establish intentional relinquishment. Defendant relies on Plaintiff's April 26, 2026 supplemental response to Special Interrogatory No. 37. That interrogatory asked whether Plaintiff had ever filed a federal or state tax return on which he claimed any ownership interest,

mortgage-interest deduction, rental income, or depreciation related to the Plummer Property and, if so, to identify the tax years and specific deductions or income claimed. In his supplemental response, Plaintiff asserted the tax-return privilege and privacy objections and, without waiving those objections, responded: "Yes. Responding Party has reported certain items related to the Plummer Property." The response does not identify rental income, a particular deduction, depreciation, a tax year, or a specific schedule. Waiver of the tax-return privilege is narrowly construed and requires a voluntary relinquishment. (*Fortunato v. Superior Court* (2003) 114 Cal.App.4th 475, 481-482.) Plaintiff's limited response, made while expressly maintaining the privilege, does not establish such a relinquishment.

Nor is the gravamen of this action inconsistent with continued assertion of the privilege. This is an action for partition by sale in which Plaintiff alleges that the parties each hold a one-half interest in the Plummer Property and seeks an accounting, contribution, and other equitable adjustments in the distribution of the sale proceeds. The Complaint does not place Plaintiff's tax treatment of the property or the contents of his tax returns at issue. Although the manner in which Plaintiff reported the property may be relevant evidence concerning the parties' ownership or accounting positions, relevance alone does not render the privilege inapplicable. (*Fortunato*, *supra*, 114 Cal.App.4th at p. 482.)

The record also does not support a recognized public-policy exception. That exception is narrow and has been applied only when warranted by a legislatively declared public policy. (*Schnabel*, *supra*, 5 Cal.4th at pp. 721-723.) In *Schnabel*, for example, the Court relied on specific statutory policies governing marital dissolution and on a particularized showing that the tax returns were necessary. (*Id.* at pp. 722-723.) No comparable legislatively declared policy is identified here. The general policy favoring civil discovery is insufficient. (*Fortunato*, *supra*, 114 Cal.App.4th at p. 483.)

Nor does the record contain the showing of necessity present in *Schnabel*. Plaintiff states that he produced receipts, bank statements, leases, rental records, and other financial records concerning the Plummer Property. (Plf.'s Sept. 1 Stmt. at pp. 6-7.) Defendant does not explain why those records are inadequate to address the ownership, rental income, expenses, or contributions at issue.

Accordingly, Plaintiff has justified his tax-return privilege objection, and the record does not establish waiver or an exception to the privilege. The motion is denied as to RFP No. 5.

Defendant's alternative request for in camera review is also denied. The asserted waiver and exceptions can be resolved from the record before the Court. Examination of the tax schedules themselves is unnecessary.

Sanctions

Code of Civil Procedure section 2031.310, subdivision (h), requires the Court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses unless the Court finds substantial justification or other circumstances making sanctions unjust.

Here, Defendant requests \$167.45 in monetary sanctions against Plaintiff and his counsel. Defendant's initial motion asserted that Plaintiff had produced no documents in response to RFP Set Two. Plaintiff disputed that assertion in Opposition. In Reply, Defendant corrected his June 2 declaration and acknowledged that Plaintiff's April 25, 2026 service included approximately 106 pages of documents labeled for seven of the fifteen requests. (Mosquera Supp. Decl., ¶¶ 3-5.) Following the June 30 order, Plaintiff also served supplemental verified responses and a 150-page document production, and the parties substantially narrowed the disputes presented by the motion. Defendant now seeks no further response or production as to RFP Nos. 1 through 4 and 6 through 15. As to RFP No. 5, the Court denies Defendant's request to compel further production and finds Plaintiff's tax-return privilege objection justified. Under these circumstances, an award of monetary sanctions against Plaintiff or his counsel would be unjust.

Defendant's request for monetary sanctions is denied.

CONCLUSION

Defendant Joel Mosquera's Motion to Compel Plaintiff's Further Responses to Requests for Production of Documents, Set Two, and for Monetary Sanctions is DENIED.